

LAW AND MOTION TENTATIVE RULINGS
DATE: AUGUST 17, 2026 TIME: 8:30 A.M.

No. 20CV00443

STEINBRUNER v. COUNTY OF SANTA CRUZ, et al.

COUNTY RESPONDENTS' DEMURRER AND MOTION TO STRIKE
PETITIONER'S SECOND AMENDED PETITION FOR WRIT OF MANDATE

REAL PARTY IN INTEREST CAL FIRE'S DEMURRER AND MOTION TO
STRIKE PETITIONER'S SECOND AMENDED PETITION FOR WRIT OF
MANDATE

Both demurrers are sustained without leave to amend and the motions to strike are granted. Petitioner concedes that her second amended petition does not meet the requirements set forth in the Sixth District's remittitur and there is no indication in the remittitur that further opportunities for amendment are permitted. (*Steinbruner v. County of Santa Cruz* (June 25, 2025, No. H051880).)

Petitioner's Request for Judicial Notice in support of her opposition to CalFire's motions:

1. Notice and moving papers: Denied, the court need not take judicial notice of its own record.
2. Order Sustaining County Respondents' Demurrer to First Amended Petition: Denied, the court need not take judicial notice of its own record.
3. Public Resources Code § 4144 Implementation Guide, Cal. Department of Forestry and Fire Protection: Denied, immaterial to this ruling.
4. Correspondence, January 9, 2008, Cal Fire Labor CDF Firefighters to Santa Cruz County Fire Department Advisory Commission: Denied, immaterial to this ruling.

Petitioner's Request for Judicial Notice in support of her opposition to County's motion is denied; all three documents are contained within the court record in this action.

County Respondents' Request for Judicial Notice is denied as immaterial to this ruling.

LAW AND MOTION TENTATIVE RULINGS
DATE: AUGUST 17, 2026 TIME: 8:30 A.M.

No. 26CV00774

GRANITE CONSTRUCTION COMPANY v. FIDELITY AND DEPOSIT COMPANY OF MARYLAND, et al.

PLAINTIFF GRANITE CONSTRUCTION COMPANY’S APPLICATION FOR CHRISTOPHER OLSEN TO APPEAR PRO HAC VICE

The application of Christopher Olsen, on behalf of plaintiff Granite Construction Company, complies with Cal. Rules of Court, rule 9.40 and is granted.

DEFENDANTS SWINERTON BUILDERS, FIDELITY AND DEPOSIT COMPANY, ZURICH AMERICAN INSURANCE, AND LIBERTY MUTUAL INSURANCE COMPANY’S MOTION FOR STAY AND TO COMPEL ARBITRATION

Defendants’ motion to stay this action is granted. The court declines to rule on defendants’ alternative request that any dispute solely between plaintiff and defendants is compelled to arbitration under their agreement; no such dispute appears to be at issue. In the event one arises and the parties do not agree to arbitrate, a motion to compel arbitration can be filed.

I. INTRODUCTION AND PARTIES

This dispute relates to the Phase 2 Kresge College contract at UCSC. The Regents (“Owner”) hired Swinerton as the general contractor. (Burke Declaration, Exhibit 1, “Prime Contract”.) Swinerton hired Granite Construction Company (Granite) as a subcontractor for demolition, earthwork and utility work. (Burke Decl., Ex. 2 [Master Subcontractor Agreement (“MSA”).] Granite thereafter entered into subcontracts with at least three lower-tier subcontractors. Over the course of the work performed under the MSA, the MSA sum escalated from over \$17 million to over \$24 million. (First Amended Complaint (FAC) ¶¶ 19-20.) Granite filed this action alleging Swinerton breached the MSA by refusing to compensate Granite for delays not in Granite’s control, allowance work in excess of the adjusted values for allowance items, and change order work due to scope and design changes during performance. (FAC ¶ 21-35.) Granite alleges it is entitled to recover all such unpaid costs under the \$20 million payment bond on the project. (FAC Ex. C.) Granite filed its amended complaint on April 8, 2026, for one cause of action for recovery on payments bond (Civil Code § 9564) and named Fidelity and Deposit Company of Maryland, Zurich American Insurance Company, Liberty Mutual Insurance Company, and Swinerton Builders as defendants.